

Satya Prakash Katara v. Junior Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Single Judge · 8 July 2025 · 2025:AHC:107596 · Writ - C No. 18215 of 2025 · **Writ disposed of without interfering with the PLA order; reconnection on Rs 40,000 deposit and three monthly instalments.**

HEADNOTE

Without interfering with a Permanent Lok Adalat order directing reconnection after deposit of admitted arrears, the High Court disposed of the writ by directing the DISCOM to reconnect on deposit of Rs 40,000 within one month, with the balance in three monthly instalments, having regard to the instalment facility under clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner challenged a Permanent Lok Adalat, Mathura order dated 15 February 2025 which had partly allowed his claim and directed reconnection after deposit of admitted dues of Rs 1,10,224. The DISCOM showed Rs 1,07,838 outstanding as of 14 May 2024. The petitioner then confined his prayer to easy instalments, citing clause 6.15 of the U.P. Electricity Supply Code, 2005. The DISCOM relied on clauses 4.39 (reconnection) and 6.14 (instalment facility).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for reconnection

HOLDING

Without interfering with the Permanent Lok Adalat order, the Court directed the DISCOM to provide a new electricity connection and reconnect supply if the petitioner deposits Rs 40,000 within one month, with the remaining arrears in three easy monthly instalments, having regard to clause 6.14 (no officer below Executive Engineer may grant instalments; EE/DGM/GM may grant up to two, three or four monthly instalments respectively; first instalment not less than 40%). ¶ 5-7

PRINCIPLE TAGS

installment-payment-clause-6.14 Without interfering with a Permanent Lok Adalat order directing reconnection after deposit of admitted arrears, the High Court disposed of the writ by directing the DISCOM to reconnect on deposit of Rs 40,000 within one month, with the balance in three monthly instalments ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ARREARS WERE IRRECOVERABLE AND DISCONNECTION BARRED UNDER CLAUSE 6.15 AFTER TWO YEARS

The petitioner invoked clause 6.15; the Court disposed of the writ on instalments under clause 6.14 without deciding the two-year bar. ¶ 4,7

NOT DECIDED — MERITS OF THE CHALLENGE TO THE PERMANENT LOK ADALAT ORDER DATED 15 FEBRUARY 2025

The Court expressly declined to interfere with the PLA order. ¶ 7

